

Chapter 19
Drifting Toward Disunion
1854-1861

The Kansas Territory erupted in violence in 1855 between the proslavery and antislavery factions. In 1857, the Supreme Court's *Dred Scott* decision permitted slavery in all Western territories, invalidating the Missouri Compromise of 1820.

Stowe and Helper: Literary Incendiaries

Harriet Beecher Stowe, who was white, published **Uncle Tom's Cabin** in **1852** as an attempt to show the North the horrors of slavery. The novel was published abroad, including France and Britain. It helped to start the Civil War and for the North to win it.

Hinton R. Helper, a non-aristocrat from North Carolina, wrote **The Impending Crisis of the South** in **1857**. He hated both blacks and slavery, and he attempted to use statistics to prove that the non-slaveholding whites were the ones who suffered the most from slavery.

The North-South Contest for Kansas

Most of the people who came to Kansas were just westward-moving pioneers. The **New England Emigrant Aid Company**, a group of abolitionists, paid some people to move to Kansas to make it a free state. (The Kansas and Nebraska territories had popular sovereignty in choosing slavery, according to the Kansas-Nebraska Act. Nebraska was so far north that its future as a free state was never in question.)

In **1855** when Kansas was having its legislature elections, many pro-slavery people came from Missouri to vote. They sought to elect pro-slavery officials. The slavery supporters won the elections and set up their own government at **Shawnee Mission**. The abolitionists then set up their own government in **Topeka**, giving the Kansas territory two governments.

In **1856**, the civil war in Kansas started when a group of pro-slavery riders burned down part of the abolitionist's town of Lawrence.

Kansas in Convulsion

John Brown: fanatical abolitionist who, in May of 1856, hacked to death 5 presumed pro-slavery men at **Pottawatomie Creek** in response to the pro-slavery events in Lawrence.

Civil war flared up in Kansas in **1856**, and continued until it merged with the nation's Civil War of 1861-1865.

In **1857**, Kansas had enough people to apply for statehood. Its citizens were going to vote again on whether or not to have slavery in the **state** of Kansas. To keep the abolitionists from creating a free state, the pro-slavery politicians created the **Lecompton Constitution**. The document stated that the people were not allowed to vote for or against the constitution as a whole, rather, they could vote on whether the constitution would be "**with slavery**" or "**without slavery**." If slavery was voted against, then one of the provisions in the constitution would protect those who already owned slaves in Kansas. Many abolitionists boycotted voting, so the constitution was approved to include slavery.

James Buchanan, a Democrat, succeeded Pierce as the President of the United States in the election of 1856. He had a strong southern influence and approved of the Lecompton Constitution. Senator Stephen Douglas was strongly opposed to the document and he campaigned against it. Eventually, a **compromise** was reached that enabled the people of Kansas to vote on the Lecompton Constitution, itself. It was revoked by the abolitionists voters, but Kansas ended up remaining a territory until **1861**, when the southern states seceded from the Union.

President Buchanan **divided** the powerful **Democratic Party** by enraging some Democrats of the North. He divided the only remaining **national** party and with it, the Union.

"Bully" Brooks and His Bludgeon

In **1856**, abolitionist Senator Charles Sumner of Massachusetts gave a provoking speech condemning pro-slavery men. During this speech, Sumner also personally insulted Senator Andrew Butler of South Carolina. Two days later on **May 22, 1856**, Butler's nephew, Preston Brooks, **beat** Sumner with a cane to unconsciousness.

The speech made by Sumner was applauded in the North, angering the South.

The clash between Sumner and Butler showed how violent and impassioned the Northerners and Southerners were for their cause.

"Old Buck" Versus "The Pathfinder"

Meeting in Cincinnati, the **Democrats** chose James Buchanan as their presidential candidate to run in the **election of 1856** because he wasn't involved with the divisive Kansas-Nebraska Act. The Democratic platform campaigned for popular sovereignty.

Meeting in Philadelphia, the **Republicans** chose Captain John C. Fremont because he was also not influenced by the Kansas-Nebraska Act. The Republican platform campaigned against the extension of slavery.

The **American Party**, also called the **Know-Nothing Party**, was formed by Protestants who were alarmed by the increasing number of immigrants coming from Ireland and Germany. They chose former president Millard Fillmore as their candidate for the election of 1856.

The Electoral Fruits of 1856

James Buchanan won the **election of 1856**.

It was a good thing that the Republican Party did not win the election because some southerners said that if a Republican had won, then they would secede.

This election was a small victory for the Republican Party because the party was just 2 years old, yet it put up a fight for the Democrats.

The Dred Scott Bombshell

Dread Scott, a slave who had lived with his master for 5 years in Illinois and the Wisconsin Territory, sued for his freedom on the basis of his long residence on free soil. In ***Dred Scott vs. Stanford***, the Supreme Court first ruled that because Scott was a black slave and not a citizen, he could not sue in Federal courts. The Court also ruled that because a slave was private property, he could be taken into any territory and legally held there in slavery. The **Fifth Amendment** forbade Congress from depriving people of their property without the due process of law. The Court went further and stated that the **Missouri Compromise of 1820 was unconstitutional** and that Congress had no power to ban slavery from the territories, no matter what the territorial legislatures themselves wanted.

This victory delighted Southerners, while it infuriated Northerners and supporters of popular sovereignty.

The Financial Crash of 1857

The **panic of 1857** was caused by over-speculation in the West and currency inflation due to the inrush of Californian gold. The North was the hardest hit, while the South continued to flourish with its cotton. Northerners came up with the idea of the government giving **160-acre plots of farming land** to pioneers for **free**. Two groups opposed the idea: Eastern industrialists feared that the free land would drain its supply of workers, and the South feared that the West would fill up with free-soilers who would form anti-slavery states, unbalancing the Senate even more. Congress passed a **homestead act** in **1860**, making public lands available at \$0.25/acre, but it was vetoed by President Buchanan.

The **Tariff of 1857** lowered import taxes to about 20%. The North blamed it for causing the panic, because they felt they needed higher duties for more protection. This gave the Republicans two economic issues for the election of 1860: protection for the unprotected and farms for the farmless.

An Illinois Rail-Splitter Emerges

In Illinois's senatorial election of 1858, the Republicans chose Abraham Lincoln to run against Democrat Stephen Douglas. Lincoln served in the Illinois legislature as a Whig politician and he served one term in Congress.

The Great Debate: Lincoln versus Douglas

Lincoln challenged Douglas to a series of seven **debates** that were arranged from August to October **1858 (Lincoln-Douglas debates)**.

The most famous debate happened in Freeport, Illinois. Lincoln asked Douglas, "What if the people of a territory should vote down slavery?" The Supreme Court in the Dred Scott decision had said that the people could not do this. Douglas's reply to him became known as the "**Freeport Doctrine**." Douglas argued that no matter how the Supreme Court ruled, slavery would stay down if the people voted it down. Laws to protect slavery would have to be voted on by the territorial legislatures.

Douglas won the senatorial election, but Lincoln won the popular vote.

John Brown: Murderer or Martyr?

Abolitionist John Brown developed a plan to secretly invade the South, call upon the slaves to rise, give the slaves weapons, and establish a black free state.

In **October 1859**, he seized the **federal arsenal** at **Harpers Ferry**. Because many of his supporters failed to show up, he was caught and sent to death by hanging. When Brown died, he lived on as a martyr to the abolitionist cause.

The Disruption of the Democrats

For the **election of 1860**, the **Democrats** met in **Charleston**, South Carolina to choose their candidate. The northern part of the party wanted to nominate Stephen Douglas, but the southern "**fire-eaters**" saw him as a traitor for his unpopular opposition to the **Lecompton Constitution** and his unpopular **Freeport Doctrine** reply. After the delegates from most of the cotton states walked out, the Democrats met again in **Baltimore** to elect a candidate. This time, Douglas was elected, despite the fact that the southerners again walked out.

The **southern Democrats** met in **Baltimore** to choose their own Democratic presidential candidate. They chose vice-president John C. Breckenridge. The platform favored the extension of slavery into the territories and the annexation of slave-populated Cuba.

The **Constitutional Union Party** was formed by former Whigs and Know-Nothings. They nominated John Bell as their presidential candidate.

A Rail-Splitter Splits the Union

The Republican Party met in Chicago and nominated Abraham Lincoln as their presidential candidate.

The Republican platform **appealed to nearly every part of the nation**. For the free-soilers, the Republicans supported the non-extension of slavery. For the northern manufacturers, they supported a protective tariff. For the immigrants, they supported no abridgement of rights. For the Northwest, they supported a Pacific railroad. For the West, they supported internal improvements at federal expense. For the farmers, they supported free homesteads (plots of land) from the public domain.

The Southerners said that if Abraham Lincoln was elected as President, the Union would split.

The Electoral Upheaval of 1860

Abraham Lincoln won the **election of 1860**, but he did not win with the **popular vote**. 60% of the nation voted for another candidate. 10 southern states didn't even allow Lincoln to appear on the ballot. South Carolina was happy at the outcome of the election because it now had a reason to secede. Even though the Republicans won the presidential election, they did **not control** the House of Representatives, the Senate, or the Supreme Court.

The Secessionist Exodus

In **December 1860**, South Carolina's legislature met in Charleston and voted unanimously to **secede**. 6 other states joined South Carolina: **Alabama, Mississippi, Florida, Georgia, Louisiana, and Texas**. The 7 seceders met at Montgomery, Alabama in **February 1861** and created a government known as the **Confederate States of America**. The states chose Jefferson Davis, a recent member of the U.S. Senate from Mississippi, as President.

During this time of secession, Buchanan was still the "lame duck" president, because Lincoln was not sworn in until 1861. President Buchanan did not hold the seceders in the Union by **force** because he was surrounded by pro-southern advisors and he could find no authority in the Constitution to stop them with force. Another reason that force was not used was because at the time, the Union's army was needed to control the Indians of the West. The Northerners were not eager to use force against the Southerners because that would have ended the possibility of peaceful negotiations.

The Collapse of Compromise

The **Crittenden amendments** to the Constitution were designed to appease the South. The amendments prohibited slavery in territories north of 36° 30', but it permitted slavery in the territories south of this line. Future states (north and south of this line) would get to vote on the issue of slavery. President Lincoln rejected the amendments.

Farewell to the Union

The southern states seceded, fearing that the Republican Party would threaten their rights to own slaves. Many southerners felt that their secession would be unopposed by the North. They assumed that the northern manufacturers and bankers, dependent upon southern cotton and markets, wouldn't dare cut off the South.